
IN THE FOURTH JUDICIAL DISTRICT, PROVO DEPARTMENT
IN AND FOR UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**RULE 8 DECLARATION
OF MICHAEL N. BURT**

Case No. 251403576

Judge Tony F. Graf Jr.

Pursuant to Rule 8 of the Utah Rules of Criminal Procedure I hereby certify that:

1. I have been in the practice of law for 47 years with an emphasis exclusively on criminal defense work for the entirety of my career.
2. I have tried over fifty cases to a jury, including 8 lengthy capital cases in state or federal courts in California, Hawaii, Massachusetts, New Mexico, and Pennsylvania . In addition, I have been appointed Learned Counsel under 18 U.S.C. § 3005 in 27 federal death penalty cases throughout the country. I am attaching a copy of my curriculum vitae to detail my experience in capital cases. See Exhibit A.
3. I have previously appeared as lead or co-counsel on eight capital cases that proceeded to verdict and many others where the case was resolved prior to or during trial.
4. I have sufficient time and resources to dedicate to the representation of the defendant charged with capital crimes.
5. I have attended hundreds of in person CLE devoted exclusively to the defense of individuals facing capital charges, 16 hours of which were attended within the last year. I have presented in excess of 120 hours of in person CLE devoted to the defense of individuals facing capital charges. . Since 2001, I have been employed by the Administrative Office of the United States Courts as a Federal Death Penalty Resource Counsel. In that capacity, I assist lawyers throughout the United States in the defense of federal capital cases, and I also train lawyers throughout the country on the standard of practice applicable in capital cases. I have been qualified and testified as a capital case standard of practice expert in both state and federal courts.
6. I consider myself to be qualified at the trial level in representing a criminal defendant in capital proceedings.

DATED this 25th day of September, 2025.

/s/ Michael N. Burt

CERTIFICATE OF SERVICE

I hereby certify that on this 25th day of September, 2025, I caused a true and correct copy of the foregoing **RULE 8 DECLARATION OF MICHAEL N. BURT** to be filed via electronic filing, which provides automatic notice to the prosecution of record.

/s/ Kathryn Nester